



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Levi Perry #234

Work Assignment: Troop/Division - A; Post/Unit – 38 - Rome

INCIDENT REPORT # DPS00151217

Related Crash Reports: C000936321 ; _____ ; _____

P.I.T. Involved: Yes

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 3/4/2024

Time: 1510 Hours

Location: Via Conference Call

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SFC Chris Harris #753 and TFC Levi Perry #234

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 2/3/2024

Time: 2149 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 2/3/2024, at approximately 2149 hours, TFC Perry overheard radio traffic from a Rome Police Officer who had stopped a black GMC Denali on Redmond Circle in Rome. The officer reported that the driver of the GMC had fled the traffic stop. However, he was not going to pursue the vehicle and asked his dispatch to give out a BOLO on the vehicle. TFC Perry was patrolling northbound on GA 1/US 27 when he observed the vehicle making a right turn from Redmond Circle onto GA 1/US 27 South. TFC Perry activated his emergency equipment and attempted to stop the vehicle. The violator then turned off his headlights, accelerated and initiated a pursuit.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes ☐ No If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes ☐ No If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A If Yes, explain: TFC Perry contacted the Troop A Communications Center by radio and advised them that he was in a pursuit. TFC Perry provided his location, direction of travel and the vehicle description. Dispatcher McWhorter received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes ☐ No If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Once the pursuit initiated, Dispatcher McWhorter cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers. Senior Dispatcher Smith contacted the Floyd County 911 Center by telephone to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on GA 1/US 27 at its intersection with Redmond Circle and traveled southbound before turning left on East 1st Street. The pursuit traveled eastbound on East 1st Street then turned right onto GA 1/US 27 South. The pursuit continued south on GA 1/US 27 then turned left onto US 411. It traveled south on US 411 until the pursuit was terminated near Hine Road SE. The pursuit traveled approximately 7.6 miles and lasted 4 minutes and 40 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit support a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☐ No If Yes, explain: TFC Perry stated he experienced an adrenalin rush during the pursuit.

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A

Explain: TFC Perry performed a Precision Immobilization Technique (PIT) maneuver in order to terminate the pursuit. He did so by making contact with the left rear of the violator's vehicle with the right front of his patrol car. The violator's vehicle spun counterclockwise off the east side of the road and came to a stop.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: TFC Perry exercised due caution throughout the pursuit and demonstrated good judgement/decision making skills. TFC Perry operated his patrol car in a responsible manner while commentating and communicating the violator's actions during the pursuit. At the conclusion of the pursuit, TFC Perry didn't take any unnecessary risks and used effective officer safety techniques while taking the violator into custody.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during nighttime hours with clear skies and a dry road surface. The traffic on all roads traveled during the pursuit would be described as light to moderate.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: The suspect demonstrated no intentions of stopping for law enforcement. The suspect traveled at very high speeds during the pursuit to avoid apprehension. The suspect drove without his vehicle's headlights being on, disregarded multiple traffic control devices and improperly passed other motorists. The suspect changed lanes recklessly between other vehicles during the pursuit. The suspect's actions put the public's safety and all involved in jeopardy.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: The suspect demonstrated no intentions of stopping for law enforcement. The suspect traveled at very high speeds during the pursuit to avoid

apprehension, drove without headlights, changed lanes improperly and improperly passed other motorists. The suspect's actions put the public's safety and all involved in jeopardy. These facts necessitated the pursuit be brought to a conclusion in order to safeguard the public from harm.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A

If Yes, explain: The violator fled at speeds in excess of 100 miles per hour without utilizing his headlights, drove recklessly between other vehicles and improperly passed other vehicles. The violator showed no regard for the safety of himself or the public.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A

If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A

If Yes, explain: TFC Perry executed a PIT maneuver in order to terminate the pursuit. There were no units ahead of the pursuit to deploy Stop Sticks, and the Box-In maneuver was not feasible due to the reckless nature of the violator's driving. The recklessness of the violator's driving posed a great risk to himself and others, and it necessitated that the pursuit be terminated as soon as practical. TFC Perry's decision to implement the PIT maneuver was objectively reasonable in order to safeguard life and preserve public safety.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A

If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A

If Yes, explain:

13. Address any damage to vehicles.

☐ N/A

If Yes, explain: The GMC and the Dodge both sustained functional damage as a result of the PIT.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A

If Yes, explain: TFC Perry has been involved in numerous pursuits during his career as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A

If Yes, explain: TFC Perry has received E.V.O.C., Advanced E.V.O.C. and Pursuit-Ending Tactics Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: TFC Perry commentated and communicated very well and verbally cleared intersections during the pursuit.

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☐ N/A If Yes, explain: At the conclusion of the pursuit, TFC Perry drew and pointed his departmental issued weapon while taking the suspect into custody. A Use of Force Report was completed.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒ N/A If Yes, explain:

Lt. T. L. Nichols #36 Lt. T. L. Nichols #36
Reviewing Officer

3/12/2024
Date